PUBLIC SERVICE COMMISSION
OF WEST VIRGINIA
CHARLESTON

Entered: October 8, 2026

CASE NO. 26-0819-WS-19A

COOLFONT MOUNTAINSIDE ASSOCIATION
Rule 19A application to increase water rates and charges
and request for emergency rates

INTERIM RECOMMENDED DECISION

BACKGROUND

On September 16, 2026, Coolfont Mountainside Association (Coolfont) filed a 19A request to increase its water rates. It also requested an emergency rate increase.

The same day, the Commission referred the matter to the Division of Administrative Law Judges.

On October 6, 2026, Commission Staff filed an Initial Staff Memorandum Including Interim Rate Recommendation, recommending the Commission approve an emergency interim rate increases for Coolfont's water operations.

Staff recommends an emergency interim water rate increase, subject to refund, which would increase annual revenues by $18,653 or 13.54% over the current water rates. The available cash under these rates will cover cash operating requirements of $124,218 and the adjusted debt service requirements of $17,395, and will result in a cash surplus of $14,778.

FINDINGS OF FACT

1. Coolfont filed an application to increase its water and sewer rates and requested emergency rate relief. (Application filed September 16, 2026).

2. Coolfont is in need of emergency financial relief in the form of emergency interim rates subject to refund. (Initial Staff Memorandum Including Interim Rate Recommendation filed October 6, 2026).

CONCLUSION OF LAW

Consistent with the Staff analysis that shows financial distress in the absence of interim rates and the Commission's authority under W.Va. Code §24-2-4a, it is reasonable to grant interim rates subject to refund.

ORDER

IT IS THEREFORE ORDERED that an emergency interim water rate increase, as reflected on the interim tariff sheets attached as Appendix A, is approved for Coolfont Mountainside Association, Inc., effective for bills rendered on and after the effective date of this Order.

IT IS FURTHER ORDERED that the emergency interim rate authorized herein is subject to refund in the event the Commission finally determines that the rates are not cost justified.

IT IS FURTHER ORDERED that within thirty days of the date of this Order, Coolfont Mountainside Association, Inc. shall file an original and six copies of its revised tariff sheets reflecting the emergency interim rates approved in this Order.

IT IS FURTHER ORDERED that Coolfont Mountainside Association, Inc. publish the Notice of Emergency Interim Rate Increase, attached as Appendix B, one time in a newspaper published and of general circulation in the county where it provides service. This notice must be published as soon as possible but no later than seven days after the date of this Order. Coolfont Mountainside Association, Inc. shall file the affidavit of publication immediately upon receipt.

IT IS FURTHER ORDERED that the Executive Secretary serve a copy of this Order on the West Virginia State Auditor's Office pursuant to W.Va. Code §59-3-2(e).

The Executive Secretary is ordered to serve this Order upon the Commission and its Staff by hand delivery, upon all parties of record who have filed an e-service agreement with the Commission by electronic service and upon all other parties by United States First Class Mail.

Leave is granted to the parties to file written exceptions supported by a brief with the Executive Secretary of the Commission within fifteen days of the date of this Order. If exceptions are filed, the parties filing exceptions shall certify that all parties of record have been served the exceptions.

If no exceptions are filed, this Order shall become the Order of the Commission, without further action or order, five days following the expiration of the fifteen day time period, unless it is ordered stayed by the Commission.

Any party may request waiver of the right to file exceptions by filing an appropriate petition in writing with the Executive Secretary. No such waiver, however, will be effective until approved by order of the Commission.

Darren Olofson
Administrative Law Judge

DO:s:lc
260819a

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APPROVED INTERIM TARIFF - WATER
Subject to refund

APPLICABILITY

Applicable within the entire territory served.

AVAILABILITY OF SERVICE

Available for general domestic, commercial, industrial and sale for resale water service.

RATE

$46.58 per 1,000 gallons for all gallons used per quarter.

MINIMUM CHARGE

No bills will be rendered for less than $139.74 per quarter.

DELAYED PAYMENT PENALTY

The above tariff is net. On all accounts not paid in full within twenty (20) days of date of bill, ten percent (10%) will be added to the net current amount unpaid. This delayed penalty is not interest and is only to be collected once for each bill where it is appropriate.

RECONNECT FEE

$25.00 to be charged whenever the supply of water is turned off for violations of rules, non-payment of bills, or fraudulent use of water.

LEAK ADJUSTMENT

$2.54 per 1,000 gallons is to be used when the bill reflects unusual consumption which can be attributed to eligible leakage on the customer's side of the meter. This rate shall be applied to all such consumption above 200% of the customer's historic usage.

TAP FEE

A tap fee of $350 will be charged to customers who apply for service outside of a certificate proceeding before the Commission for each new tap to the system.

RETURNED CHECK CHARGE

A service charge equal to the actual bank fee assessed to the water utility up to a maximum of $25.00 will be imposed upon any customer whose check for payment of charges is returned by the bank due to insufficient funds.

SECURITY DEPOSIT

Not to exceed two times the average monthly bill of the applicant's specific customer class, or fifty dollars, whichever is greater. This fee may be changed by applicable statutory provisions.

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NOTICE OF EMERGENCY INTERIM RATE INCREASE

On September 16, 2026, the Coolfont Mountainside Association (Coolfont) filed an application requesting water rate increases. To qualify for the optional rate procedure for small utilities established by Rule 8.2 (Old Rule 19-A) of the Public Service Commission Rules for the Construction and Filing of Tariffs (Tariff Rules), 150 C.S.R. 2, the annual gross revenue of the utility must not exceed $3,000,000.

On the recommendation of Commission Staff, the Commission approved an emergency interim water rate increase of 13.54% effective immediately. The specific water rates approved are as follows:

RATE

$46.58 per 1,000 gallons for all gallons used per quarter.

MINIMUM CHARGE

No bills will be rendered for less than $139.74 per quarter.

This emergency interim rate increase is applicable to all customers of Coolfont. The emergency interim rates are subject to refund if not justified by an ongoing Staff audit and final decision in this matter. Customers may review the specific emergency interim rate changes at Coolfont's office.

These rates are interim rates only and may be increased, decreased or left unchanged at the conclusion of this rate case. During the course of this proceeding the Staff of the Commission will recommend final rates for use by Coolfont. Those rates will be published at a later date and may be protested at that time.

COOLFONT MOUNTAINSIDE ASSOCIATION

Public Service Commission of West Virginia

201 Brooks Street, P.O. Box 812
Charleston, West Virginia 25323

Phone: (304) 340-0300
Fax: (304) 340-0325

October 8, 2026

Yuri Soares
Vesta Kimble
PO Box 418
Berkeley Springs, WV 25411

RE: Case No. 26-0819-WS-19A
Coolfont Mountainside Association, Inc.

Ladies:

Enclosed is a copy of an Interim Recommended Decision in the above styled case, pursuant to the requirements of West Virginia Code §24-1-9. Your attention is directed to important information contained in the ordering paragraphs. Please note carefully that if no exceptions are filed within fifteen days of this date, the order will become the order of the Commission five days following said time period, unless the order is stayed or postponed by the Commission. Exceptions to this order should be filed with this office.

Documents submitted to the Public Service Commission of West Virginia may be 1) uploaded to its public website, 2) subject to public disclosure under the West Virginia Freedom of Information Act, and/or 3) subject to disclosure under the West Virginia Open Governmental Proceedings Act. Do not submit personal information with your filings. The Commission is not responsible for confidential or personal information included with your submission. A list of personal information is available here: http://www.psc.state.wv.us/Privacy_Policy/WhatisPII.htm

If you have provided an email address you will automatically receive notifications as documents are filed in this proceeding. The email notifications allow recipients to view a document within an hour from the time the filing is processed. If you have not provided your email address, please send an email to caseinfo@psc.state.wv.us and state the case number in the email subject field. **You are encouraged to file an Electronic Mail Agreement which allows the commission to serve all orders issued in this matter via electronic notification.**

Sincerely,

Karen Buckley
Executive Secretary

KB/al
Enc. Order